



POLICE DEPARTMENT

July 24, 2012

MEMORANDUM FOR: Police Commissioner

Re: Sergeant John Ruiz
Tax Registry No. 905551
Harbor Unit
Disciplinary Case No. 2010-2160

The above-named member of the Department appeared before me on June 1, 2012, charged with the following:

1. Sergeant John Ruiz, while assigned to the Harbor Unit, while off-duty, on or about February 11, 2010, while at a New York City Department of Education facility in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that Sergeant Ruiz told his spouse, an employee of the New York City Department of Education, in the presence of her colleague (s), in sum and substance, that if her supervisor walked in he would hit him with a bottle. *(As Amended)*

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT - PROHIBITED
CONDUCT

2. Sergeant John Ruiz, while assigned to the Harbor Unit, while off-duty, on or about February 11, 2010, while at a New York City Department of Education facility in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that Sergeant Ruiz told his spouse, an employee of the New York City Department of Education, in the presence of her colleague (s), in sum and substance, that her supervisor was a “pussy” and that her colleagues were “rats.” *(As Amended)*

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT - PROHIBITED
CONDUCT

3. Sergeant John Ruiz, while assigned to the Harbor Unit, located at or near 140 58TH Street in Kings County, New York, on or about February 24, 2009, failed to record a post change from the 3rd Platoon roll call in the Command Log.

P.G. 206-03, Page 1, Paragraph 7 VIOLATIONS SUBJECT TO COMMAND
DISCIPLINE DISCIPLINARY MATTERS

COURTESY • PROFESSIONALISM • RESPECT

The Department was represented by Scott Rosenberg, Esq., Department Advocate's Office, and Respondent was represented by John D'Alessandro, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification Nos. 1 & 2. Specification No. 3 is Dismissed.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Shahzad Kazi, Rina Horne, and David Cohen as witnesses.

Shahzad Kazi

Kazi, Director of Operations for the Children's First Network of the Department of Education, worked alongside Respondent's wife, Frances Ruiz, at 415 89 Street in Brooklyn in February 2010. Kazi worked in an office space with David Cohen, Person A, Rina Horne, and Frances. Person A was the office supervisor. Kazi described the office dimensions as small, where the inhabitants sat in close proximity with their backs toward each other in the formation of a square.

On February 11, 2010, Kazi was working in the office with Cohen, Horne, and Frances. At around noon, Respondent entered the office and sat down in a chair

alongside Frances. Kazi understood Respondent to be a member of the NYPD. Respondent, who Kazi had met on two occasions prior, did not greet any other inhabitants of the office and was described by Kazi as "very cold." Respondent carried a glass Snapple bottle and engaged in conversation with Frances. This conversation included Frances's complaints about the office environment and her co-workers. From about three to four feet away, with his back to Respondent, Kazi overheard Respondent comment, "If he was here, I would hit him over the head with this bottle," and proceeded to thump the Snapple bottle into his palm. Cohen and Horne were present in the office when this comment was made.

A few minutes later, Kazi responded to an unrelated e-mail from Person A in which he informed Person A of Respondent's presence and conversation. Kazi advised Person A to not come to the office. Soon after, Person A called Kazi on the telephone and instructed him to have Respondent leave the building. Kazi exited briefly to compose himself, made sure that security agents were available, then re-entered and asked to speak with Frances in another office. There, Kazi informed Frances that Person A had asked that Respondent leave the office. Frances asked Kazi how Person A knew that Respondent was in the building, which Kazi did not respond to but reiterated that Respondent needed to leave. Respondent left the building soon after.

During cross-examination, Kazi attested he was not aware that Frances had gotten a flat tire on her way to work that day, nor was he aware Frances had just been notified that her position was being terminated. Kazi was aware that there was a reorganization taking place, and communicated that all members of the office were aware that they may lose their jobs or change positions.

Kazi subsequently testified at a Board of Education trial against Frances that Respondent's comments on February 11, 2010 caused Kazi to be afraid for his life. In that trial, Kazi testified that Respondent and Frances were mostly speaking in hushed tones, but that the comment about the Snapple bottle was heard very clearly. Kazi concluded that the Snapple bottle comment was made in reference to Person A. Kazi did not notify the Department of Respondent's comments until February 23, 2010, when asked by Person A to give a written statement on the incident to NYPD Internal Affairs.

On redirect examination, Kazi asserted that he reported the incident to investigators with the Board of Education, and reiterated that Respondent's comment about the Snapple bottle in his hand was made clearly with the intent that it be heard.

Rina Horne

Horne, an Assistant Principal at P.S 186, worked alongside Respondent's wife, Frances, at 415 89 Street in Brooklyn in February 2010. Horne and Frances had a friendly working relationship that began in November 2009, and there were no problems between them until the incident involving Respondent on February 11, 2010.

Horne testified that Respondent entered the office around noon, and that she did not recognize Respondent at this time. Horne had briefly interacted with Respondent once before. Horne substantiated Kazi's claim that Respondent entered the office holding a glass Snapple bottle, sat down next to Frances, and did not acknowledge anyone else in the office. Horne sat about two feet away from Respondent, but she could not hear the conversation between Respondent and Frances. Soon after Respondent sat down, Horne excused herself and took a 20 to 30 minute break. Upon returning,

Respondent and Frances were not in the office but they returned around one o'clock, talking again around Frances' computer. Frances was summoned out of the room by Kazi, and upon returning she announced that Person A wanted Respondent to leave. At this point Respondent commented, "you're right, you work with a bunch of rats," which made Horne uncomfortable. This comment was made twice at a volume characteristic of general conversation, but it was heard clearly by Horne. Respondent then referred to Person A as a "pussy." This comment was also made twice. After these comments were made, Respondent informed Frances that he would wait for her and then he left the office.

During cross-examination, Horne asserted that she did not hear Respondent comment about hitting anyone with a bottle but reiterated that she did see him enter the office with a Snapple bottle in his hand. Horne, Cohen, and Kazi discussed the incident involving Respondent together before they left the building that day. Horne did not see the others again until she returned two weeks later from a hiatus due to winter break. When she returned, Horne provided a written statement on the incident to Person A, in which she provided a recollection of the incident. This recollection included Respondent's possession of a Snapple bottle when he entered the office, and an account that indicated Frances told Respondent that "someone from the office told [Person A] you were here," to which Respondent made the comment that Frances' co-workers were rats. [Respondent's Exhibit (RX) A is a witness statement given to supervisor dated February 22, 2010.]

Horne provided a statement to the NYPD and testified at the Board of Education trial. In the NYPD statement, she recalled that Frances stated that she worked with a

bunch of rats. In the Board of Education trial, Horne testified that this comment by Frances was made in agreement with the statement first made by Respondent.

David Cohen

Cohen, Director of Student Services for the Department of Education, worked with Respondent's wife, Frances, as a Special Services Manager at 415 89 Street on February 11, 2010. Cohen enjoyed a collegial relationship with Frances in the five years that they worked together. Around noon, Cohen viewed Respondent standing in the hallway, outside of the office. Cohen informed Frances that Respondent was outside, at which point Frances let Respondent in and Respondent sat down next to his wife. Cohen had met Respondent once previously, and Respondent nodded in Cohen's direction upon entering. Cohen sat about 10 feet from Respondent, and did not initially observe Respondent with a drink. After Cohen had left and returned, he noticed that Respondent was drinking from a glass Snapple bottle.

On cross-examination, Cohen said that after Frances had left for the day, he and the other officemates discussed what had transpired, specifically the comments made by Respondent, and he decided that they all should leave work early together.

On redirect, Cohen clarified that the remarks which made him and the others uncomfortable were those specifically when Frances said that her coworkers made her nauseous and that she didn't want to work in that office any longer. Cohen was not present for any threatening comments made by Respondent.

Upon further questioning by the Court, Cohen stated that he first learned about the allegation of the threatening comments by Kazi, whom he encountered in the hallway outside of the office in which they worked.

The Respondent's Case

Respondent called Frances Ruiz as a witness and testified in his own behalf.

Frances Ruiz

Frances, a 21-year member of the Board of Education, was an Achievement Coach at 415 89 Street in February of 2010. On February 4, 2010, Person A informed Frances in a meeting that her position was being cut from his team. According to Frances, Person A reasoned that Frances was not loyal to him, and it was within his power to remove her from his team. Frances subsequently discussed her removal from the team with Kazi, who informed her that he may be passed over for a promotion that he sought.

On February 11, 2010 Frances got a flat tire on the way to work and was stuck in the road. Respondent came to the aid of his wife, changed the tire to a spare, and pulled the car over to the side of the road. Respondent then drove Frances to work and went to get the flat tire repaired. Around lunch time, Respondent returned to Frances' office and had lunch with her at her desk. After lunch, Respondent and Frances left her office to go to purchase a thumb drive at Staples, so Frances could save her computer files onto it. Upon returning to the office, Kazi approached Frances and informed her that Person A

had ordered Respondent to leave the office. Frances walked Respondent out of the office to the elevator bank, where they parted and Respondent left the building.

Frances testified that she did not hear Respondent make any comments about hitting anyone in the head, nor did she hear Respondent refer to Person A as a “pussy.” Frances was subsequently brought up on disciplinary charges by the Board of Education for allowing Respondent to use her computer and for engaging in disparaging remarks against colleagues. Frances was found not guilty in an administrative trial.

During cross-examination, Frances acknowledged that she was interviewed by a Board of Education investigator regarding the incident. In that interview, she stated that she did not hear Respondent refer to anyone as a “pussy,” nor did she hear Respondent refer to anyone as “rats.” She restated her assertions from this interview and stated that she did not hear Respondent make any of the comments, but learned from Respondent subsequently that Respondent did use the word “pussy.”

The Respondent

Respondent, a 21 year member of the Department currently assigned to the Harbor Unit, received a phone call from his wife, Frances, about thirty minutes into his tour on February 11, 2010. Frances informed Respondent that she was stuck on the road with a flat tire, and Respondent requested to take the day off to assist Frances and transport her to work. After aiding Frances, Respondent fixed the tire on Frances’ car and returned to her office around noon for lunch. Respondent had visited the office previously and admitting feeling shocked that he had been asked to leave by Person A, considering Person A was not present that day. Respondent conceded that he

commented that Person A was a "pussy," but claimed that the comment was made to no one, and simply made under his breath as he left the office.

On February 23, 2010, an investigator from the Board of Education interviewed Respondent at Respondent's stationhouse in Brooklyn. In this interview, Respondent was confronted with the allegations that Respondent threatened Frances' co-workers. Respondent was told that if Frances did not resign her position with Person A's team, that the investigator would inform the Department of Respondent's behavior. The interview ended after this exchange, and Respondent informed his Integrity Control Officer of the exchange and the incident of February 11, 2010.

During cross examination, Respondent conceded that during his interview with the Special Operations Investigations Unit, he initially denied that he used any profanity in the presence of Frances and her co-workers. Respondent did admit that he used the term "pussy" under his breath. Respondent attempted to file formal complaints against the Board of Education investigator and Person A, but was unsuccessful. Respondent denied that he threatened to strike Person A with a Snapple bottle, and also denied that he referred to Frances' colleagues as "rats."

FINDINGS AND ANALYSIS

Specification Nos. 1 & 2 in this case charge that Respondent "told his spouse, an employee of the New York City Department of Education (DOE), in the presence of her colleagues, in sum and substance, that if her supervisor walked in he would hit him with a bottle" and that, again in the presence of his wife's colleagues, he said that "her supervisor was a 'pussy' and that her colleagues were 'rats'"

Respondent's wife, Frances, is currently an Achievement Coach with the DOE. On February 22, 2010 she worked in a Network office at 415 89 Street in Brooklyn which is a DOE facility but not a school.¹ She worked in what has been described as a Network team office with several other people, Kazi, Cohen and Horne, who testified at this proceeding. Another person, Person A, also worked at this facility. He was the Network leader. Person A was not present when these incidents allegedly occurred and he did not testify at this proceeding.

The background for the events of February 22, 2010 were set out by Frances, who testified that on February 4, 2010 Person A called her into a room and told her that her position in the Network was being cut. She said she was shocked and that Person A told her that this was his decision. He suggested that she apply for a position as an assistant principal and she said she explained that that would constitute a demotion as she had been a principal before coming to the Network.

Kazi, described the team office as being relatively small, roughly 10 feet by 12 feet. He also testified that there was tension in the office because he and others were also concerned about being cut.

Both Respondent and Frances described the day as very snowy and stated that Frances had a flat tire while going to work. Respondent said that he helped her to deal with that problem.

¹ The official website of the NYC Department of Education describes a Network as follows: "...[A]ll NYC public schools receive their primary support from a team of about 15 staff members called a Children First Network. Each network team provides expert support, technical assistance, and quality control for a group of approximately 25 schools: they offer training and coaching for principals and teachers, share instructional resources to meet each school's needs, and help schools across the network collaborate with each other..."

Both Respondent and Frances acknowledge that at some point Respondent came to the Network office and that he brought lunch. Both Respondent and Frances acknowledge that Respondent was at Frances' work station and that he was helping her with her computer. They acknowledge that there was a Snapple bottle but in Respondent's version of events, his wife and not he, had the Snapple.

This is relevant because Kazi claims that he heard a thumping noise and turned to see Respondent hitting the Snapple bottle into his palm and saying that if Person A came in he would hit him over the head with the bottle. Kazi said that some of the conversation between Respondent and Frances had been inaudible but that part was said in a raised voice and that he could hear it and indeed he said some comments could be heard throughout the room.

Kazi is the only witness who claimed to have heard this statement. Kazi testified that after hearing the statement he e mailed and subsequently spoke with Person A on the telephone to advise him not to come into the office as he might be in danger. He said that Person A told him that he should go back to the office and order Respondent to leave. Kazi testified that after alerting school security he did that by speaking with Frances and telling her that her that Person A had told him that her husband had to leave. Kazi then left the office.

Horne testified that she was present in the office at that time and heard Respondent wonder out loud how Person A had found out that he was there and then stated to Frances that she worked with "rats." Frances agreed.

Horne also testified that as he was leaving Respondent stated out loud that Person A was a "pussy."

Respondent and Frances deny that Respondent ever made a threat. Respondent and Frances deny that either of them made a comment involving the term "rat." Respondent admits he made some kind of "pussy" comment which Frances said she never heard.

Thus the factual issues are clearly delineated. Respondent has argued that Horne and Kazi are not to be believed. He notes that both have been promoted since this event. He points to various alleged discrepancies in their versions of events. He also notes that there was a disciplinary proceeding in the DOE involving charges brought against Frances, seeking her termination, in which she was found not guilty.

Dealing with this last issue first it has not been argued and cannot be argued that the DOE proceeding creates some kind of precedent or *res adjudicata* in this proceeding. The respondent in that case was Frances and it was her conduct and what she said that was at issue. Further what was represented to this court was that there were two charges and one of them involved an allegation that Frances allowed an unauthorized person, Respondent, to use a DOE computer. Such a charge has nothing to do with this disciplinary action.

Looking at all of the evidence it would appear that the statements were made as alleged. The reason for this finding is that entirety of the circumstances supports the testimony of both Kazi and Horne.

Frances was clearly frustrated and unhappy with Person A. Respondent, as her husband, apparently shared in that unhappiness. The flat tire on the way to work obviously did not help with the level of frustration both must have felt that day. The reason they were working on the computer was related to that unhappy situation as

Respondent was helping explain to her how to remove her files from her work computer. Some of the conversation Kazi claims to have overheard; an ironic remark about how “little” work she had done, tend to reflect the frustration over losing a position at the Network. Similar remarks were also heard by Horne and Cohen.

In this context it is hardly unlikely that Respondent would have made the statement Kazi attributes to him; that he would hit Person A if he came in.

Respondent has suggested that Kazi had some motive to lie. He noted that Kazi has since been promoted. While there is a possibility that Kazi would have wanted to please Person A, as he acknowledged that he was concerned about his own position at the time, there is no reason to believe that he would make up a story to do so. Moreover there was no motive for Kazi to have invented this particular event.

If Kazi was going to make up a tale to ingratiate himself with Person A it would likely have been aimed at Frances and not at her husband.

It is also worth noting that Cohen who heard none of the charged statements by Respondent first learned of the incident when he ran into Kazi on a stairwell speaking on his cell phone. When inquired as to why Kazi was doing this he learned that Kazi had spoken to Person A who ordered Respondent out of the building. This then provides some additional corroboration of Kazi’s version of events.

The second event in the charges relates to a claim that after Frances was told that Person A wanted Respondent to leave Respondent made a statement to the effect that Frances worked with a bunch of “rats.” Kazi testified that he left the room after giving Frances the message. He did not hear the statement. The witness to this statement was Horne. Again the claim by Respondent is that Horne’s credibility is suspect as she

received a promotion subsequent to this event. As with Kazi there is no evidence linking testimony in this case or the DOE disciplinary case to any promotion. Further as Horne is now an assistant principal it seems unlikely that her testimony was related to that promotion.

Here again the claimed conduct by Respondent and his wife makes sense in the context of what was happening. Person A was not present in office that day. For him to have directed that Respondent leave would have required someone in the office to have told him of Respondent's presence. Given the level of frustration and anger on the part of Frances and her husband, the Respondent, it is a statement that, although inappropriate, is something that might well have been said. Moreover Respondent admits that just after that he referred to Person A as a "pussy."

This "pussy" statement too provides context because it reveals the level of the conversation Respondent was engaged in as well as Respondent's emotional state. Used in the fashion that even Respondent agrees he used it the term was intended to be both vulgar and disparaging. The "pussy" statement provides strong support for Hornes' testimony about the "rats" statement and direct corroboration of the accuracy of her testimony regarding the use of that word.

As previously noted Respondent has argued that there are inconsistencies in the testimony offered by the Department. Kazi testified that Cohen and Horne were present when Respondent made his threatening statement. He also seemed to indicate that the statement was made in a voice loud enough for anyone in the office to hear.

While there is no doubt that this is inconsistent with the fact that neither Cohen nor Horne claim to have heard the statement, it does not undermine the credibility of

Kazi's testimony about what he heard. There is no doubt that there was a great deal of coming and going in that office during this period of time. Cohen testified that his responsibilities had him going to meetings throughout the building and the he was in and out of the office all day.

Horne also testified about leaving the office. She said she was uncomfortable with Respondent's demeanor and because it was lunchtime she left shortly after he arrived to get coffee outside of the office. Even Frances and Respondent were part of this in and out of the office. Respondent testified that they left to go to the store and buy a new thumb drive. Indeed Horne testified that when she returned to the office Frances and Respondent were not present but returned while she was there.

In assessing the reliability of testimony consistency and inconsistency it is certainly a factor but one that must be considered carefully. Consistent statements from two witnesses might mean that they are both reporting accurately about the same event or it could mean that they have coordinated their stories. Conversely inconsistencies may result from a poorly crafted lie or because human beings are not mechanical recording devices.

It is certainly possible, if not likely, that Cohen and Horne were in fact not present at the moment the threatening statement was made or that what Kazi perceived as being loud enough for everyone in the room to hear was in fact not that loud.

The factors that make Kazi's testimony credible outweigh any concern this inconsistency has on his credibility. Further, any purposeful effort at crafting a story would not likely have resulted in the kind situation that is presented here where one statement is heard by one witness and another by a different witness.

As to Horne's testimony, Respondent attempted to demonstrate that there was an inconsistency in a previous statement she made during the DOE disciplinary matter. Horne acknowledged that there was discussion at that trial as to whether Respondent or Frances used the word "rats." However it was established that she agreed in the end, at that proceeding, that it was Respondent who first used that word. That was precisely her testimony at this trial. Moreover a written report by Horne about the incident dated February 22, 2010 (RX A) clearly states just about what she said at this trial; that after being told that Person A wanted him to leave Respondent stated to Frances that she works with "rats .. they are all rats" Horne then went on, in the report, to recount the "pussy" statement as follows: "Fran you were right Person A (Person A) is a pussy..he did not even come in."

Because the testimony of Kazi and Horne is credible Respondent is found Guilty of Specification Nos. 1 & 2.

The Department has moved to Dismiss Specification No. 3. The Assistant Department Advocate noted that Respondent had been offered and declined an "A" Command Discipline along with the issuance of instructions. He moved to dismiss the charge from the current trial as being in the best interest of the Department. The Court concurs.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on February 14, 1994. Information from

his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

In this case Respondent entered a DOE facility, happily not a school or a facility with children, but nonetheless an educational workplace. His comments were not merely inappropriate but disrupted the work environment. This would be problematic even if the members of that staff did not know that he was a uniformed member of this Department but in fact at least two of them did. Moreover Cohen, who offered no testimony about the statements made by Respondent, said he authorized an early closure of the office because he, Horne and Kazi "were a little bit nervous and felt a little strange being there with the things that were being said."

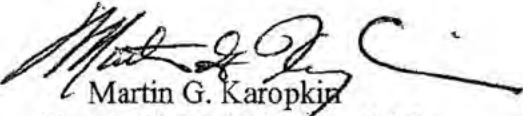
The Department has recommended a penalty of the loss of 15 vacation days. This in and of itself is not unreasonable. However in this case there are several genuine mitigation factors. The first is that, in marked and refreshing contrast to most disciplinary cases involving a spouse or significant other, this case was not about strife between the two. In this case Respondent was attempting to provide support for his spouse and was acting out of concern for her.

Second this had to have been a very frustrating day for both Respondent and his wife. The snowstorm and the flat tire added to the misery of an unhappy work situation. As noted earlier, it seems likely that all of this led up to the lapse of good judgment which allowed this incident to occur.

That leads to the third mitigating factor which is that this was a singular incident which appears to be uncharacteristic of Respondent. Respondent has been a member of this Department 18 years without any prior disciplinary action.

For all of these reasons the penalty should be the loss of 5 vacation days.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner – Trials


APPROVED
DEC 10 2012
RAYMOND W. KELLY
POLICE COMMISSIONER

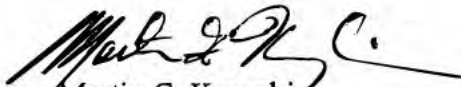
POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
SERGEANT JOHN RUIZ
TAX REGISTRY NO. 905551
DISCIPLINARY CASE NO. 2010-2160

Respondent has received an overall rating of 4.5 "Extremely Competent/Highly Competent" on his last three annual performance evaluations. He has been awarded three medals for Excellent Police Duty and one for Meritorious Police Duty. [REDACTED]

[REDACTED]
Respondent has no prior formal disciplinary record.

For your consideration.


Martin G. Karopkin
Deputy Commissioner [REDACTED] Trials